

26STCV01919 26STCV01919

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Case Number: 26STCV01919 Hearing Date: September 11, 2026 Dept: 413

TENTATIVE

RULING

HEARING DATE: Friday, September 11, 2026

CASE NUMBER: 26STCV01919

CASE NAME: Briana

Illescas-Rodriguez vs. American Honda Motor Company

MOVING PARTY: Defendant American Honda Motor
Company, Inc.

OPPOSING PARTY: Plaintiff Briana Illescas-Rodriguez

PROCEEDING: Demurrer with Motion to
Strike Complaint

RULING: Defendant

AHM's demurrer is overruled. The motion to strike is denied. Defendant shall file its Answer to the Complaint within ten days of this Ruling.

The Court sets an Order to Show Cause Re: Filing of Answer for
_____, 2026, at 8:30AM. The Court continues
the Case Management Conference to the same date and time.

Background

On

January 30, 2026, Briana Illescas-Rodriguez ("Plaintiff") filed a Complaint against American Honda Motor Company ("AHM" and/or "Defendant"). The Complaint alleges causes of action for (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Implied Warranty of Merchantability; and (5) Fraudulent Inducement—Concealment.

Defendant

AHM demurs to the fifth cause of action and moves to strike punitive damages from the Complaint. Plaintiff opposes both motions.

LEGAL STANDARDS

A. Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) "For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) "A demurrer 'does not admit contentions, deductions or conclusions of fact or law.'" (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B. Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1); CRC, rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court.

(Code Civ. Proc., § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) ㄥㄥㄥ

C. Leave to Amend

"Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) ㄥㄥㄥ

Demurrer[1]

I. Discussion

A. 5th Cause of Action – Fraudulent Inducement—Concealment

"The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 [citation and internal quotations omitted].)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively

conceals discovery of material fact from plaintiff (i.e., active concealment).”

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40).

“Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as. . . parties entering into any kind of contractual agreement.” (Id.)

The Court determines

that Plaintiff has sufficiently pled the elements of fraudulent—Concealment. Plaintiff alleges that she entered into a warranty contract with Defendant AHM for the subject vehicle, a 2023 Honda Civic, VIN 2HGFE1F90PH320305 (Complaint, ¶ 6); that the Subject Vehicle was manufactured and/or distributed by AHM (id.); that defects and nonconformities, including engine defects, electrical defects, and start/stop defects, manifested themselves within the applicable express warranty period (id., ¶ 11); that AHM knew since prior to Plaintiff purchasing the Subject Vehicle that vehicles equipped with the 1.5L engine are defective and suffer one or more conditions that can result in loss of power, stalling, engine running rough, engine misfires, premature failure, or engine replacement (the “Engine Defect”) (id., ¶¶ 47, 50–53); that the Engine Defect is a safety concern because it severely affects the driver’s ability to control the vehicle and substantially increases the likelihood that the engine will fail, lose power, and/or cut off during operation, thereby resulting in accidents involving property damage, personal injury, and even death (id., ¶ 49); that AHM acquired its knowledge of the Engine Defect prior to Plaintiff acquiring the Subject Vehicle through sources not available to consumers, including pre-release testing data, early consumer complaints to AHM and its dealers, repair orders, aggregate warranty data, failure rates and replacement part sales data, and other internal sources, but failed to disclose this fact to Plaintiff at the time of sale and thereafter (id., ¶¶ 51, 57–59); that Plaintiff is a reasonable consumer who relied upon AHM’s marketing materials and interacted with sales representatives concerning AHM vehicles prior to purchasing the Subject Vehicle (id., ¶¶ 61, 66); that Plaintiff expected AHM would not sell vehicles with known safety-related defects, such as the Engine Defect, and would disclose any such defects to its consumers when it learned of them (id., ¶¶ 61–62); that Plaintiff would not have purchased the Subject Vehicle had she known of the Engine Defect (id., ¶¶ 54, 60, 63, 65); and that Plaintiff suffered damages, including loss of money, property, and diminution in value of the Subject Vehicle (id., ¶ 55).

In Dhital v. Nissan

North America, Inc. (2022) 84 Cal.App.5th 828, 844, the Court of Appeal

determined that plaintiff's allegations that

CVT transmissions

installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective," that "Nissan knew of the defects and the hazards they posed," that "Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information," that "Nissan intended to deceive plaintiffs by concealing known transmission problems," that "plaintiffs would not have purchased the car if they had known of the defects" and plaintiffs suffered damages in the form of money paid to purchase the car" adequately stated a cause of action for fraudulent inducement by concealment.

Based

on the holding in *Dhital*, the Court concludes that Plaintiff's fraud claim is adequately pleaded here.

The Court also rejects

AHM's contention that there was no transactional relationship giving rise to a duty to disclose. Plaintiff alleges that she entered into a warranty contract with AHM regarding the subject vehicle. (Complaint ¶ 6). AHM's reliance on *Ford Motor Warranty Cases* (2023) 89 Cal.App.4th 1324, 1329, to argue that the existence of a warranty does not constitute a transactional relationship, is misplaced. The case does not stand for that proposition.

Plaintiffs'

fraudulent inducement—concealment cause of action is not barred by the economic loss rule, which provides that "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922). As noted in *Rattagan*, *supra*, 17 Cal.5th at 43-44, the economic loss rule applies to fraud that is claimed to have occurred during the course of performing on a contract. Here, Plaintiff has alleged that fraud before entering into the contract induced her to purchase the vehicle.

The demurrer to the fifth cause of action is overruled.

Motion to Strike Punitive damages

To state a claim for punitive damages under Civil Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Id.) "Malice" is defined in section 3294(c)(1) as "conduct which is intended by the defendant to cause injury" or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." "Oppression" is defined in section 3294(c)(2) as "despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person's rights." The term "despicable" has been defined in the case law as actions that are "base," "vile," or "contemptible." (Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc. (2000) 78 Cal. App. 4th 847, 891.) Fraud means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c) (3).)

Defendant moves to strike Plaintiff's demand for punitive damages in the Complaint's prayer for relief.

Plaintiff has sufficiently pleaded facts to support punitive damages. Willful violations of the Song-Beverly Act may entitle the consumer to a civil penalty "which shall not exceed two times the amount of actual damages." (Civ. Code, § 1794, subd. (c).) Punitive damages and a Civil Penalty under the Song-Beverly Act were awarded to the plaintiff in Anderson v. Ford Motor Co. (2022) because the fraud cause of action arose from different conduct than the violations of the Song-Beverly Act. (Anderson v. Ford Motor Co., (2022) 74 Cal.App.5th 946, 971 ["[P]unitive damages punished Ford for oppression, fraud, or malice related to its pre-sale fraud and concealment. It separately received a penalty for willfully failing to comply with its Song-Beverly Act obligations — a penalty that was based on conduct that took place after the conduct underlying the pre-sale fraudulent concealment."])

Like the plaintiff in Anderson, Plaintiff can recover

punitive damages for pre-sale fraudulent misconduct rather than Song-Beverly Act violations, even if the fraudulent conduct continues beyond the sale date and intertwines with the Song-Beverly Act violations. (See Anderson, supra, 74 Cal.App.5th at 972.) Moreover, the fact that Plaintiffs may simultaneously seek to recover both punitive damages and statutory penalties at the pleading stage, does not mean that punitive damages are available for willful violations of the Song-Beverly Act. (See Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1256.)

Conclusion

Defendant AHM's demurrer is overruled.

The motion to strike is denied. Defendant shall file its Answer to the Complaint within ten days of this Ruling.

The Court sets an Order to Show Cause Re: Filing of Answer for _____, 2026, at 8:30AM. The Court continues the Case Management Conference to the same date and time.

Dated: September 11, 2026 _____ William Weinberger

Judge, Los Angeles Superior Court

[1]

Pursuant to Code of Civil Procedure sections 430.41 and 435.5(a), the meet and confer requirement has been met. (Hurvitz Decl. ¶ 2.)